

Plaintiff has properly objected to the costs claimed. This shifts the burden of proof Defendant who is the party claiming the costs. In opposition, attached as Exhibit A to the Declaration of Matthews are invoices evidencing the costs claimed for the fees for electronic filing or service, and as Exhibit B invoices evidencing costs claimed under the category of "other."

The invoices attached as Exhibit A only account for allowable costs in the amount of \$2,083.14. The amount claimed for Fed Ex are not allowable under Code of Civil Procedure section 1033.5, subdivision (b)(3) as they appear to be postage. The remaining costs of \$2,073.30 are not supported by the attached invoices. Accordingly, Plaintiff's motion to tax No. 14 in the amount of \$2,214.35 is GRANTED.

Costs for appearances at hearings are not expressly approved or prohibited under section 1033.5, subdivision (a) or (b). Therefore, they are discretionary under section 1033.5, subdivision (c). Exhibit B only provides evidence of two (2) invoices for CourtCall at \$72 each, and for travel expenses totaling \$334.57 (\$164.35 and \$170.22). Plaintiff argues that the travel expenses of \$334.57 are not reasonably necessary and should be taxed. Here, it is axiomatic that unless excused by the court a party's appearance at a hearing is reasonably necessary and this court in its discretion will allow those costs. However, Defendant fails to account for the remaining costs claimed in the amount of \$1,089.53 or to provide an explanation as to why they are reasonably necessary. Accordingly, Plaintiff's motion to tax No. 15 in the amount of \$1,089.53 is GRANTED.

Defendant is awarded total costs of \$3,257.56.

25CV-04604 Alma Ramos vs Brandon Ellison

Order to Show Cause Re: Dismissal

Appearance Required.

25CV-06367 Harminder Singh vs Sergio Mora

Motion for Default Judgment Against Defendant Sergio Mora

The motion for default judgment against Defendant Mora is DENIED WITHOUT PREJUDICE.

In general, a plaintiff seeking a default judgment against a named defendant must either (1) dismiss all parties, including unserved Doe defendants, against whom judgment is not being sought, or (2) file an application for a separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment. (See Rules of Court, rule 3.1800.)

Neither was done in this instance. Accordingly, the motion for default judgment is denied without prejudice.
